

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

=====X

CURTAYASIA TAYLOR,

Plaintiff,

-against-

CITY OF NEW YORK, IRENE PRENTZAS,
JOHN and JANE DOE 1-10,

Defendants.

=====X

To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with the summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: December 4, 2024
New York, New York

The nature of this action is, *inter alia*, false imprisonment, assault and battery and personal injury sustained as a result of the defendants' negligence, recklessness and intentional conduct. The relief sought is monetary damages.

ELEFTERAKIS, ELEFTERAKIS & PANEK



BY: Michael Gluck, Esq.

Attorneys for Plaintiff

80 Pine Street, 38th Floor

New York, New York 10005

(212) 532-1116

Failure to respond will result in a judgment against you by default and interest from September 7, 2023.

Defendants:

THE CITY OF NEW YORK

100 Church Street

New York, New York 10007

POLICE OFFICER

IRENE PRENTZAS

19th Precinct

153 East 67th Street

New York, New York 10065

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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CURTAYASIA TAYLOR,

Index No.:

COMPLAINT

Plaintiff,

-against-

CITY OF NEW YORK, IRENE PRENTZAS,
JOHN and JANE DOE 1-10,

===== X

CURTAYASIA TAYLOR, by her attorneys, ELEFTERAKIS, ELEFTERAKIS &
PANEK, as and for her Complaint, respectfully alleges, upon information and belief:

NATURE OF THE ACTION

1. This is an action to recover money damages assault and battery, unlawful seizure, negligence, recklessness, infliction of emotional distress and other misconduct perpetrated by the City of New York and its employees.

JURISDICTION AND VENUE

One or more of the exceptions of § 1602 of the Civil Practice Law and Rules apply to this action. This action is pursuant to the laws of the City and State of New York.

JURY DEMAND

2. Plaintiff demands a trial by jury in this action.

PARTIES

3. Plaintiff Curtayasia Taylor is a resident of the State of New York.

4. Defendant City of New York ("City") is a municipal corporation organized under the laws of the State of New York. It operates the New York City Police Department

(“NYPD”), an agency of defendant City responsible for the appointment, training, supervision, retention, promotion and discipline of police officers and supervisory police officers. The City is also responsible for the policies, customs and practices of the NYPD.

5. Defendant Irene Prentzas, Shield No. 27045 (“Prentzas”), was a police officer involved in the illegal conduct set forth herein that deprived plaintiff of her rights. Prentzas is being sued in their individual capacities and as employees of defendant City of New York.

6. At all times relevant defendants John and Jane Doe 1 through 10 were police officers, supervisors or medical staff employed by the NYPD or City of New York. Plaintiff does not know the real names or shield numbers of defendants John and Jane Doe 1 through 10.

7. At all times relevant herein, defendants John and Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York and the NYPD.

8. At all times relevant herein, all individual defendants were acting under color of state law and in the scope of their employment.

STATEMENT OF FACTS

9. On or about September 7, 2023, at approximately 4:00 p.m., in the vicinity of 73rd Street and Madison Avenue in Manhattan, plaintiff was lawfully present inside of her Mercedes Benz automobile with her seven-year-old son, when defendant NYPD officers approached her vehicle and assaulted her.

10. When unidentified NYPD officers boxed plaintiff's vehicle in to prevent her from moving in any direction, plaintiff rolled down her window and immediately put her hands up.

11. Defendants then reached inside her vehicle demanding she get her license and registration from the glove compartment.

12. Defendants held their guns in both plaintiff and her seven-year-old son's faces.

13. The experience was physically and emotionally traumatic for plaintiff.

14. Within ninety days of the accrual of the claims, a Notice of Claim was served on the defendant, the City of New York.

15. More than 30 days have elapsed since the Notice of Claim was served upon the defendant and the defendant has failed and refused to make an adjustment of any claim herein set forth.

16. A hearing pursuant to § 50-h of the General Municipal Law is currently being scheduled at the time of this filing and plaintiff is available and willing to testify.

17. All conditions precedent to the bringing of this action have been complied with, and plaintiff will appear for such further hearings as the City shall notice.

18. This action was commenced within one year and ninety days after the accrual of the cause of action herein.

19. By reason of the foregoing, plaintiff was damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon trial of this action.

20. As a direct result of Defendants' misconduct, plaintiff suffered, *inter alia*, mental anguish, fear, pain, physical injury, anxiety, embarrassment, humiliation and damage to her reputation.

FIRST CLAIM
False Imprisonment

21. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

22. By their conduct, as described herein, the individual defendants are liable to plaintiff for falsely imprisoning and falsely arresting plaintiff.

23. Plaintiff was conscious of her confinement.

24. Plaintiff did not consent to her confinement.

25. Plaintiff's confinement was not otherwise privileged.

26. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

27. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

SECOND CLAIM

Assault & Battery

28. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

29. By their conduct, as described herein, the defendants are liable to plaintiff for having assaulted her.

30. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

31. By reason of the assault, Curtayasia Taylor sustained damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction.

32. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein alleged.

THIRD CLAIM

Negligence; Negligent Hiring/Training/Retention

33. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

34. Defendant City, through the NYPD, owed a duty of care to plaintiff to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to plaintiff or to those in a like situation would probably result from the foregoing conduct.

35. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

36. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants were potentially dangerous.

37. Upon information and belief, defendant City's negligence in screening, hiring, training, disciplining, and retaining these defendants proximately caused each of plaintiff's injuries.

38. Upon information and belief, the foreseeable negligence of agents of defendant City caused plaintiff's injuries.

39. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

FOURTH CLAIM

Negligent or Intentional Infliction of Emotional Distress

40. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

41. By reason of the foregoing, the defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each were negligent (or intentional) in committing conduct that inflicted emotional distress upon plaintiff.

42. The negligent (or intentional) infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

43. Defendants, their officers, agents, servants, and employees were responsible for the negligent (or intentional) infliction of emotional distress upon plaintiff. Defendant City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

44. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

FIFTH CLAIM

Violation of Plaintiff's Administrative Code § 8-802 Rights

45. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

46. Defendants' unlawful seizure and assault and battery of plaintiff and violated her rights as defined in Section 8-802 of Chapter 8 of the New York City Administrative Code.

47. As such, immunity is not a defense to the violations of plaintiff's rights and plaintiff demands and are entitled to the relief described in Section 8-805.

48. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

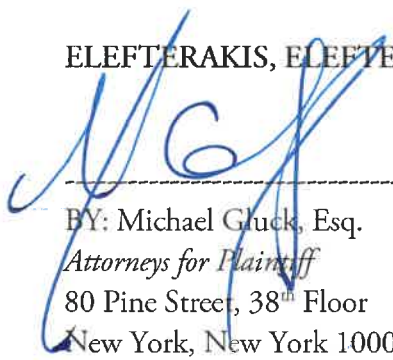
PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment for an amount which exceeds the jurisdictional limits of all other Courts which would otherwise have jurisdiction herein against Defendants as follows:

- (a) Compensatory damages against all Defendants, jointly and severally;
- (b) Punitive damages against such individual Defendants as may be joined in this action, jointly and severally;
- (c) Reasonable attorneys' fees and costs, and with interest from the date of the incident; and
- (d) Such other and further relief as this Court deems just and proper.

Dated: December 4, 2024
New York, New York

ELEFTERAKIS, ELEFTERAKIS & PANEK


BY: Michael Gluck, Esq.

Attorneys for Plaintiff

80 Pine Street, 38th Floor

New York, New York 10005

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